

FEDERAL MARITIME COMMISSION

DOCKET NO. 02-08

ODYSSEY STEVEDORING OF PUERTO RICO, INC.
v.
PUERTO RICO PORTS AUTHORITY

DOCKET NO. 04-01

INTERNATIONAL SHIPPING AGENCY, INC.
v.
THE PUERTO RICO PORTS AUTHORITY

DOCKET NO. 04-06

SAN ANTONIO MARITIME CORP.
AND ANTILLES CEMENT CORP.
v.
PUERTO RICO PORTS AUTHORITY

NOTICE

Notice is given that the Commission has determined, on its own motion pursuant to Rule 241(a), to hear oral argument in the three above-referenced proceedings. 46 C.F.R.502.241(a). The Commission has further determined that argument will be limited to the following specific issue:

Whether the Puerto Rico Ports Authority is an arm of the Commonwealth of Puerto Rico under the standard set forth in Ceres Marine Terminals, Inc. v. Maryland Port Administration, 30 S.R.R. 358 (2004), and as recently applied in Carolina Marine Handling, Inc. v. South Carolina State Ports Authority et al., ____ S.R.R. ____ (2006)

Oral argument is scheduled for October 18, 2006, at 9:30 a.m. in the Commission's Main Hearing Room in Washington, D.C. The Complainants in each of these proceedings, Odyssey Stevedoring of Puerto Rico, Inc., International Shipping Agency, Inc., and San Antonio Maritime Corp., and Antilles Cement Corp., will appear first and be allotted a total of sixty minutes for argument, of which a portion may be reserved for rebuttal. The Complainants should agree among themselves as to the allocation of the sixty minutes allotted. The Respondent, Puerto Rico Ports Authority (PRPA), is similarly allocated a total of sixty minutes. Each party shall notify the Commission no later than September 22, 2006 of the name, address, and telephone number of the individual who will be appearing on its behalf at oral argument. This notification should conform to the service requirements of the Commission's Rules and may be filed with the Commission in hardcopy at its Offices at 800 North Capitol Street, NW, Washington, D.C. 20573 or via email at secretary@fmc.gov.

Notice is further given that the Commission has determined to accept the amicus brief of the Commonwealth of Puerto Rico. Should the Commonwealth of Puerto Rico seek leave and be granted permission to participate in oral argument, it will share in the time allotted to PRPA.



Bryant L. VanBrakle
Secretary